

HOUSE No. 4174

The Commonwealth of Massachusetts

PRESENTED BY:

Danillo A. Sena

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the Ayer Library.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Danillo A. Sena</i>	<i>37th Middlesex</i>	<i>5/7/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>6/24/2025</i>

HOUSE No. 4174

By Representative Sena of Acton, a petition (accompanied by bill, House, No. 4174) of Danillo A. Sena (by vote of the town) relative to the Ayer Library in the town of Ayer. Municipalities and Regional Government. [Local Approval Received.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the Ayer Library.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 123 of the acts of 1894, as amended by chapter 371 of the acts of
2 1991, is hereby amended by deleting section 1 and inserting in its place the following:- There
3 shall be in the town of Ayer a body corporate known as The Ayer Library. Such entity shall
4 establish and maintain in the said town of Ayer an institution to aid in the advancement and
5 diffusion of education and learning by means of a library free to all inhabitants of said town;
6 with all the powers and privileges and subject to all duties, restrictions and liabilities set forth in
7 all general laws which are now or may hereafter be in force applicable to such corporations and
8 not inconsistent with this act.

9 SECTION 2. Said chapter 123 is hereby further amended by deleting in the second
10 sentence of section 2 the following:- not exceeding two hundred thousand dollars in value.

11 SECTION 3. Said chapter 123 is hereby further amended by deleting the text of section 3
12 and inserting in its place the following:- There shall be a board of trustees of the Ayer Library of

13 nine members, elected by and from the registered voters of the town of Ayer for 3-year terms,
14 with the terms of 3 trustees to expire each year. Vacancies on the Board of Trustees shall be
15 filled until the next annual election, or a special election called by the Select Board for such
16 purposes, by the remaining members of the board of trustees and the Select Board at a joint
17 meeting held after one week's notice has been posted on the town website, the town bulletin
18 board, if any, and at the Ayer Library.

19 SECTION 4. Said chapter 123 is hereby further amended by deleting section 4 and
20 inserting in its place the following:- The board of trustees shall have the entire possession,
21 management, control and direction of the affairs of the Ayer Library. The board of trustees shall
22 annually, or more often at its discretion, choose from its number a president, vice president,
23 secretary, and treasurer and prescribe the duties of each. The trustees may adopt bylaws and
24 regulations for the use and management of the library, its property and funds.

25 SECTION 5. Section 5 of said chapter 123 is deleted in its entirety and the remaining
26 sections of said chapter renumbered accordingly.

27 SECTION 6. Section 6 of said chapter 123 is hereby amended by deleting in section 6
28 the second clause of the sentence and inserting a period in its place, and inserting thereafter the
29 following new sentence:- All money raised or appropriated by the town for the support and
30 maintenance of the Ayer Library shall be expended by the board, and, notwithstanding the
31 provisions of section 53A of chapter 44 of the general laws, all money or property, appropriated
32 by or which the town or the library may receive by gift, grant or bequest for said library shall be
33 administered by the board in accordance with the provisions of such appropriation, gift, grant or
34 bequest.

SECTION 7. This act shall take effect upon its passage.